

Chapter 13

POLICE*

Sec. 13-1. Emergency police assistance.

(a) The purpose of this section is to authorize the chief of police, with the concurrence of the police commission and city manager, to extend and receive emergency police assistance under the provisions of RSA 106-C.

(b) The definitions contained in RSA 106-C:1 are adopted by reference and the definition for emergency is clarified to include any situation when the chief of police or the chief executive officer, of any local police department which has an agreement with the city for mutual emergency police assistance, determines that their police department lacks police officers readily available to handle the existing police requirements.

(c) The chief of police, with the concurrence of the police commission and the city manager, is authorized to enter into emergency police assistance agreements with other local police departments, in accordance with the provisions of RSA 106-C. The chief of police shall not donate the services rendered under such agreements. Except under the authority of a resolution duly passed by the city council, the chief of police shall not render emergency police assistance to municipalities which have not entered into such agreement with the city.
(Ord. No. 174, §§ 1—4, 8-10-77)

Sec. 13-2. Police escort service.

(a) A fee which is on file in the city clerk's office shall be charged for all escorts provided by the police department, excluding those related to official city functions.

***Cross references**—Personnel advisory board, § 2-101 et seq.; department of police, § 2-281 et seq.; alarm systems, Ch. 3; miscellaneous offenses, Ch. 9; traffic and motor vehicles, Ch. 19.

(b) The police department shall bill all persons and companies receiving escort services on a monthly basis and shall forward all funds received therefrom to the city treasurer for deposit to the general fund.

(c) The police department shall be responsible for enforcing the terms of this section and the chief of police shall be the final authority in the resolution of questions arising from the fee schedule established and on file in the city clerk's office.
(Ord. No. 213, §§ 1—3, 10-14-81)

Sec. 13-3. Police line or clear zone.

The police chief of the city, or an officer acting on his behalf, may establish a police line or clear zone in the event of a fire, accident, explosion, parade, calamity, public disturbance, or other occasion [which] causes or may cause persons to collect on the public streets, sidewalks, or other areas of the city for the purpose of affording a clear area for the following purposes:

- (1) The protection of persons and property;
 - (2) Police officers, firemen, emergency medical personnel, and other personnel performing operations in accordance with their duties;
 - (3) The exclusion of the public from the vicinity of a fire, accident, explosion, calamity, other emergency or public disturbance;
 - (4) The passage of a parade;
 - (5) The movement of traffic.
- (Ord. No. 374, 5-24-95)

Sec. 13-4. Compliance.

(a) The chief of police, or officer acting on his behalf, may authorize certain persons to cross such police lines or be within such clear zones [as described in section 13-3], and they may remain in such zone provided they do not interfere with emergency personnel performing their duties.

(b) Every authorized person present within such clear zone shall comply with any necessary order or instruction of any police officer. Any person who refuses to comply with the necessary order of a police officer shall be guilty of a violation.

(c) Any unauthorized person who shall knowingly cross any such line, knowingly enter into any such zone, or any authorized or unauthorized person who shall remain in any such zone after being requested to leave shall be guilty of a violation.
(Ord. No. 374, 5-24-95)

Sec. 13-5. Penalty.

Any person who violates this chapter shall be fined not less than one hundred dollars (\$100.00). Any such person shall be deemed guilty of a separate offense for every day during any portion of which any violation of this chapter is committed, continued, or permitted.
(Ord. No. 374, 5-24-95)

Sec. 13-6. Curfew.

(a) *Adoption of curfew law.* The city council of the city hereby adopts by reference the provisions of the subdivision entitled, "Curfew Regulations" set forth in RSA 31:43-a, 31:43-c, 31:43-d, 31:43-e, 31:43-f and 31:43-g. This section is also adopted under the authority of RSA 47:17(XV).

(b) *Minors under sixteen (16).* It shall be unlawful for any minor under the age of sixteen (16) years to be upon any public street, or in any public place, between the hours of 10:00 PM and 6:00 AM on Sunday, Monday, Tuesday, Wednesday, and Thursday, unless accompanied by a parent, guardian, or responsible adult over the age of twenty-one (21). It shall be unlawful for any minor under the age of sixteen (16) years to be upon any public street, or in any public place between the hours of 11:00 p.m. and 6:00 a.m. on Friday and Saturday, unless accompanied by a parent, guardian, or responsible adult over the age of twenty-one (21).

(c) *Curfew signal.* Whistles which can be heard in every part of the city shall be blown, or bells shall be rung at the appointed time, and shall be called the curfew signal, after which all

children under sixteen (16) years of age shall be required to leave the street except if they are in company of a parent, guardian, or responsible adult over the age of twenty-one (21).

(d) *Penalty, custodian.* Any parent, guardian, or person having the control of any minor under the age of sixteen (16) years who shall permit any such minor to be upon any public street or in any public place in the city, in violation of this subdivision, shall be guilty of a violation.

(e) *Penalty, minors.* For the initial violation of this subdivision by any child it shall be taken to the police station by the patrol person, and the parents or guardian shall be informed. The parents or guardian shall also be informed by the patrol person of the penalty of any subsequent violation of this section.

(f) *Second violation.* Upon any subsequent violation by any child said child, parents, or guardians shall be guilty of a violation.

(g) *Defenses.* It is a defense to prosecution under this section if the minor was:

- (1) Engaged in an employment activity, or going to or returning home from an employment activity, without any detour or stop;
- (2) Involved in an emergency;
- (3) Attending a school, religious or other recreational activity supervised by adults.

(Ord. No. 378, 11-12-97)